

Beena Rani vs Udayan on 29 September, 2016

Author: K.Ramakrishnan

Bench: K.Ramakrishnan

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR. JUSTICE K.RAMAKRISHNAN

THURSDAY, THE 29TH DAY OF SEPTEMBER 2016/7TH ASWINA, 1938

Tr.P(C).No. 612 of 2014 ()

AGAINST THE JUDGMENT IN OP (RESTITUTION) NO. 702/2014 of FAMILY COURT,
KOTTARAKKARA

PETITIONER/RESPONDENT :

BEENA RANI
W/O.UDAYAN, PRESENTLY RESIDING AT NADATIVILA VEEDU,
HOUSE NO.1/812, VAZHAYILA, THURUTHUMoola, PEROORKADA P.O.,
THIRUVANANTHAPURAM.

BY ADV. SRI.SHAJIN S.HAMEED

RESPONDENT/PETITIONER:

UDAYAN
S/O.GOPALAN, GOPALASADANAM,
NEELUMPARAMBU RESIDENCY,
PATHRIKKAL MURI, PATHANAPURAM P.O.,
PATHANAPURAM VILLAGE, PATHANAPURAM TALUK,
KOLLAM DISTRICT-689 695.

THIS TRANSFER PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
29-09-2016, ALONG WITH TPC. 613/2014, THE COURT ON THE SAME DAY PASSED
THE FOLLOWING:

Tr.P(C).No. 612 of 2014

APPENDIX

PETITIONER'S ANNEXURES

ANNEXURE I - PHOTOCOPY OF THE PETITION O.P.NO.673/2014 FILED BY THE PETITIONER BEFORE THE FAMILY COURT, KOTTARAKKARA FOR RECOVERY OF GOLD ORNAMENTS, MONEY AND FOR MAINTENANCE.

ANNEXURE II - PHOTOCOPY OF THE PETITION FILED BY THE RESPONDENT O.P. (RESTITUTION) NO.702/2014 UNDER SECTION 9 OF THE HINDU MARRIAGE ACT AND 7 OF THE FAMILY COURT ACT, 1984 BEFORE THE FAMILY COURT, KOTTARAKKARA.

ANNEXURE III - PHOTOCOPY OF THE PETITION FILED AS M.C. NO.446/2014 UNDER SECTION 125 OF CR.P.C. BEFORE THE FAMILY COURT, NEDUMANGAD.

RESPONDENT'S ANNEXURES

NIL

// True Copy //

P.A. to Judge

rmm

K.RAMAKRISHNAN, J.

Tr. P. (Civil) Nos. 612 & 613 of 2014

Dated this the 29th day of September, 2016

O R D E R

These two petitions were filed by the petitioner, who is the wife of the respondent for transfer of O.P.(Restitution)No.702/2014 and O.P.No.673/2014, both pending before the Family Court, Kottarakkara to the Family Court, Nedumangad under Section 24 of the Code of Civil Procedure.

2. It is alleged in both these cases that marriage between the petitioner and the respondent was solemnized on 10.02.2009 at Attukal Devi Temple, Manacaud, Thiruvananthapuram. Thereafter, they lived together as husband and wife and two children were born to them in that wedlock. After sometime, their relationship strained. The petitioner is now residing separately with children along with parents at Perurkada. At that time when she was residing at Kottarakkara, she filed O.P.No.673/2014 before the Family Court, Kottarakkara against the respondent for the recovery of

gold ornaments, money and maintenance for herself and children. As counter blast to the same, respondent filed O.P.No.702/2014 before the Family Court, Koattarakkara for restitution of conjugal rights. Now, she had shifted her residence to Perurkada and residing with her parents. It is difficult for her to go to Kottarakkara to conduct the case and she has no independent income to maintain herself and she is depending on her parents for the maintenance of herself and children. So, she prayed for allowing the application for transfer. Hence this petition.

3. Though notice was served in Tr.P.C. No.612/2014, respondent did not appear and in Tr.P.C.613/2014 notice was declared sufficient as per order in I.A. No.2036/2016 today.

4. Heard Sri.Shajin S.Hameed, the counsel appearing for the petitioner on both the cases. The counsel argued in support of the claim made in this petition.

5. The petitioner and respondent are wife and husband and two children were born to them in that wedlock. Admittedly, O.P.No.673/2014 was filed by the petitioner against the respondent along with two children for return of gold ornaments, money and maintenance for herself and the children.

6. It is alleged in the petition that she was residing at Kottarakkara at that time, and so she happened to file that petition there. When that petition was filed the respondent herein filed O.P.No.702/2014 before the Family Court, Kottarakkara for restitution of conjugal rights. Now, she had shifted her residence to Perurkada where she is now residing with her parents with the children. She has no employment of her own. She is finding it difficult to go to Kottarakkara to conduct the case. So, considering the circumstances, asking a lady without employment to go to Kottarakkara to conduct the case will cause unnecessary hardship to her. Considering the circumstances this Court feels that it is necessary in the interest of justice to transfer the above case to Family Court, Nedumangad. So, the applications are allowed and O.P.No.702/2014 and O.P.No.673/2014 both pending before the Family Court, Kottarakkara are withdrawn and transferred to the Family Court, Nedumangad for disposal. The Family Court, Kottarakkara is directed to transmit the records to the Family Court, Nedumangad at the earliest.

Registry is directed to communicate this order both the courts immediately.

Sd/-

K.RAMAKRISHNAN JUDGE // True copy // P.A. To Judge rmm/30.09.2016